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IN THE CIRCUIT COURT, FOURTH JUDICIAL CIRCUIT, IN AND FOR DUVAL COUNTY, FLORIDA

STEFEN WYNN,

Plaintiff,

vs. Case No.: 23-CA-008801

CITY OF NEPTUNE BEACH,

Defendant.
_____/

PLAINTIFF'S RESPONSE TO DEFENDANT'S MOTION TO DISMISS THE SECOND AMENDED COMPLAINT AND MOTION TO STRIKE

Plaintiff, Stefen Wynn, responds to Defendant, the City of Neptune Beach's Motion to Dismiss his Second Amended Complaint and its (separately filed) Motion to Strike the Second Amended Complaint[1] and states:

SUMMARY OF ARGUMENT

Defendant's Motion attempts to parse out the written objections Plaintiff attached to his Second Amended Complaint – analyzing them individually for technicalities. *See* Exhibits A, B, C, and D to the Second Amended Complaint. However, the Florida's Public Whistleblower Act ("FPWA") requires a liberal

[1] Defendant's separately filed Motion to Strike contain essentially the same issues as its Motion to Dismiss – except for the irony that its Motion to Dismiss infers that Plaintiff should add more allegations to state a cause of action and the Motion to Strike infers the opposite. In sum, the requests are inconsistent and should both be denied for the reasons stated herein.

ACCEPTED: DUVAL COUNTY, JODY PHILLIPS, CLERK, 06/20/2024 09:31:12 AM

construction that, in turn, requires all of the Exhibits to be read collectively in determining whether they constitute protected activity. *See Russ v. The School Board of Lee County Florida*, 2021 WL 1091113 (M.D. Fla. Feb. 10, 2021), discussed *infra*; *See also City of Jacksonville v. Smith*, 159 So. 3d 888 (Fla. 1st DCA 2015) (discussing *Irven v. Dep't of Health & Rehab. Servs.,* 790 So. 2d 403, 405 (Fla. 2001) ("In circumstances where the legislative enactment is so clearly remedial in nature, the canon of strict construction takes a back seat."). Regardless, whether considered individually or collectively, the written objections attached to Plaintiff's Second Amended Complaint constitute protected activity under the FPWA. Moreover, for mostly the same reasons, Defendant's Motion to Strike should also be denied.

ARGUMENT AND MEMORANDUM OF LAW[2]

In *Russ*, the Middle District of Florida considered whether technically insufficient written objections should be considered in conjunction with Russ (the plaintiff's) oral objections. In finding that both, when considered in tandem, establish protected conduct under the Public Whistleblower Act, the court stated:

> The Undersigned finds that insofar as Russ's written reports included allegations that federal Pell funds were being incorrectly applied and other awards were not being timely applied, the reports allege, at a minimum, misfeasance in the form of negligence on the part of the individuals tasked with maintaining the subject records and accounts.

[2] To avoid duplication, Plaintiff refers the Court to his prior response (E-Filed 01/28/2024) to Defendant's previous Motion to Dismiss — those citations and arguments. Thus, Plaintiff's previous response (E-Filed 01/28/2024) is incorporated as if fully set forth herein.

> *See* Fla. Stat. § 112.3187(5)(b). **Moreover, although Russ may not have identified the specific individuals alleged to be at fault, Russ testified that the bursar is responsible for at least some of the items described in the reports. (*See* Doc. 50 at 56). <u>Additionally, Russ testified that she orally identified the bookkeeper and bursar as the responsible parties for the improperly handled student accounts</u>. (*See id.* at 64).** Accordingly, the Undersigned finds that a person could reasonably determine from the context of the allegations that the bookkeepers and bursar, who are responsible for financial aid and record keeping, are the specific individuals responsible. *See Burden*, 2012 WL 4764592, at *18. **Thus, the Undersigned finds that these written reports constitute protected disclosures. To the extent Russ's oral disclosures to Brown mirrored the allegations in the written reports, the Undersigned finds that those oral disclosures were also protected.**

Id. at *6-7 (emphasis supplied). Thus, just because Russ's written reports might have been insufficient – standing along – the information he provided orally should also be considered in determining that his written report was protected.

I. Plaintiff Was Objecting to Actual or Suspected Activity

Here, interpreting Exhibits A, B, C, and D cumulatively shows that Plaintiff reported actual or <u>suspected</u> behavior protected by the FPWA. According to Fla. Stat. § 112.3187(5) ("Nature of Information Disclosed") to be protected activity under the FPWA, the information Plaintiff disclosed may include either one of two general categories:

> (a) *Any violation or suspected violation of any federal, state, or local law, rule, or regulation* committed by an employee or agent of an agency or independent contractor which creates and presents a substantial and specific danger to the public's
>
> 1) health,

2) safety, or
3) welfare

or[3]

(b) Any *act or suspected act* of

1) gross mismanagement,
2) malfeasance,
3) misfeasance,
4) gross waste of public funds, or
5) gross neglect of duty

committed by an employee or agent of an agency or independent contractor. (emphasis supplied).

Thus, Fla. Stat. § 112.3187(5)(b) includes any act or *suspected* act of gross mismanagement, malfeasance, misfeasance, gross waste of public funds, or gross neglect of duty. Also, the definition of misfeasance is expansive. *See Kimmons v. Crawford,* 92 Fla. 652, 109 So. 585, 587 (Fla. 1926) (defining misfeasance as "the performance of an act in an unlawful, injurious, or negligent manner"). In *Rosa v. Dep't of Children & Families,* the First District Court of Appeals, in considering the

[3] While section 112.3187(5) does not include "or" or "and" between subsections (a) and (b), courts have interpreted this provision as requiring either (a) or (b). *E.g.*, *Vickaryous v. Sch. Bd. of Collier Cty.*, No. 2:18-cv-315-FtM-99MRM, 2019 WL 949303, *3 (M.D. Fla. Feb. 27, 2019) (granting temporary reinstatement and finding that plaintiff made a showing under subsection (b)); *Griffin v. Sun N' Lake of Sebring Improvement Dist.*, No. 2:16-cv-14062, 2017 WL 5202683, *2-4 (S.D. Fla. Jan. 20, 2017) (granting temporary reinstatement and finding plaintiff made a showing under subsection (b) but not subsection (a)); *King v. State of Fla.*, 650 F. Supp. 2d 1157, 1162 (N.D. Fla. 2009) (posing subsections (a) and (b) as alternative required showings).

rulings from the Florida Supreme Court, found that "misfeasance" includes "negligent acts committed by an employee of an agency." 915 So. 2d 210,212 (Fla. 1st DCA 2005).

Moreover, the FPWA defines "[g]ross mismanagement" as "a continuous pattern of managerial abuses, wrongful or arbitrary and capricious actions, or fraudulent or criminal conduct which may have a substantial adverse economic impact." Fla. Stat. § 112.3187(3). Neither malfeasance nor misfeasance is defined in the statute; however, the Florida Supreme Court noted in *Irven* that "[m]isfeasance is defined as the 'improper doing of an act which a person might lawfully do; and 'malfeasance' is the doing of an act which a person ought not do at all."' [*Id.* at 407 n.3 *(quoting* Black's Law Dictionary 1000 (6th ed. 1990))]; *see also Kimmons v. Crawford,* 92 Fla. 652, 109 So. 585, 587 (Fla. 1926) (defining misfeasance as "the performance of an act in an unlawful, injurious, or negligent manner"). *See also Rosa,* 915 So. 2d at 212 ("misfeasance" includes "negligent acts committed by an employee of an agency.").

II. The Cumulative Effect of the Complaint's Exhibits

The Second Amended Complaint attached four written complaints by Plaintiff that form the basis of this case. *See Rule 1.130 - Attaching Copy Of Cause Of Action And Exhibits*, Fla. R. Civ. P. 1.130 ("Any exhibit attached to a pleading must be considered a part thereof for all purposes."). Whether read independently or

collectively, they show that Plaintiff objected to Defendants' suspected violations of gross mismanagement, malfeasance, and misfeasance. *See*, e.g., Florida Stat. Sec. 166.241 (titled Fiscal years, budgets, appeal of municipal law enforcement agency budget, and budget amendments), Fla. Stat. Sec. 129.03 (titled Preparation and adoption of budget). The objections were also made to the correct persons, or at least persons with the authority to correct the issues.

A. *Exhibit A forms the basis for a public whistleblower claim under Fla. Stat. § 112.3187.*

On March 5, 2021, Plaintiff reported in writing to Defendant's Finance Committee that Defendant was deficient in the areas of policy, and he stated that he was "aware of the deficiencies that have long plagued the City's financial management practices ...". [*See* Exhibit A]. *See* the Second Amended Complaint, paragraph 9. Moreover, that email string includes the March 4, 2021, email from Plaintiff to Carl LaFleur with a cc to Cheryl Bäck, stating:

> I'd like to review these documents with you tomorrow. I'm unaware of any revised budgets for FY-21 and want to know the process you took to adjust CIP items. Also, I think that the best way to move forward for budget items that may need to be adjusted is to prepare a form that can be inserted into my monthly city manager report for the Council to see.
>
> I understand that Florida Statute allows for reappropriations as long as the final number of the budget isn't changed, but the documents submitted in this email show a final number deficit. I'd like you to walk me through it tomorrow, and I plan to have Councilor Key add an agenda item for the next finance committee meeting to

> discuss policies and procedures for the budget process and the budget administration process.

This email chain constitutes a whistleblower disclosure by the Plaintiff because it is also related to the email by Councilor Lauren Key (also included in the chain) that "after reading FL statute 166.241, we are out of the 60 days of budget close for 2020 amendments."

Moreover, it was digitally signed by Plaintiff, valid under Florida's Electronic Transactions Act (UETA). Under the UETA, electronic signatures have the same legal effect as traditional handwritten signatures. Fla. Stat. Section 668.50(7)(b) ("a contract may not be denied legal effect or enforceability solely because an electronic record was used in the formation of the contract"). His signature can be any mark or symbol that a party makes with the intent to authenticate a record or contract, so a valid signature can be written, stamped, printed, typed, initialed, or impressed onto paper in other forms. *see also Walker v. Fla. Dep't of Veterans' Affs.*, 925 So. 2d 1149, 1150 (Fla. 4th DCA 2006) ("The purpose of the statutory requirement of a signed writing 'is to document what the employee disclosed, and to whom the employee disclosed it, thus avoiding problems of proof for purposes of the Whistle-blower Act.' ") (*quoting Hutchison v. Prudential Ins. Co. of Am., Inc.*, 645 So. 2d 1047, 1050 (Fla. 3d DCA 1994)). Here, there is no problem of proving who sent the objections and to whom it was disclosed so the lack of hand signature is irrelevant.

B. *Exhibit B also forms the basis for a public whistleblower claim under Fla. Stat. § 112.3187.*

On March 15, 2022, Plaintiff submitted a written and signed complaint to Defendant regarding suspected fraud in its building and permit department. *See* the Second Amended Complaint, paragraph 10; the complaint was submitted through the Purvis Gray auditing software to the Defendant's City Auditors, Purvis Gray, CPAs. [*See* Exhibit B]. *Id.* For example, in response to question 2, Plaintiff stated:

> 2. What specific areas/locations in your Organization/Department do you think are most susceptible to fraud, e.g., cash receipts, inventory, sick and vacation time, revenue misstatements? Do you feel the controls are sufficient in these risk areas to prevent and detect fraud? Have these risks and controls been communicated to the appropriate level of management? How?
>
>> The most susceptible areas of the City of Neptune Beach for fraudulent activity, or human error, are within the Building Permit, and Plan Review processes; and within the calculation and use of paid-time-off, compensatory time, and bonus days.
>>
>> <u>Prior to September 2021, I believe that the procedures for generating and paying for permits and reviews were insufficient to prevent and detect fraud.</u> There was no segregation of duties from permit generation to satisfying the receivables created by the permit.
>>
>> The City has since implemented policies and procedures meant to improve internal controls through the segregation of duties. Individuals that generate invoices do not collect payment for the invoices.

> Since 2019, the Building Permit, and Plan Review processes have used disparate systems for generating an invoice and receipting payment. <u>This has created a fundamental weakness in the process that the City is addressing for FY-2023 with the implementation of a new ERP software that includes modules for building and planning.</u>

(emphasis supplied). In these written and signed disclosures, Plaintiff reported that money coming into the building and permit department did not match the general ledger, meaning that money paid into the City was not deposited into City accounts. *Id.* The City Auditors, Purvis Gray, are appropriate local officials to whom reports of misspending and/or possible theft of City funds could be made and were an entity that could correct the problems reported by Plaintiff. *Id.*

Thus, Plaintiff's objections were related to financial management, not financial statements. He also made this clear in response to question number 3:

> 3. Are you aware of (a) any violations of laws, regulations, or provisions of contracts or grant agreements, (b) illegal acts or suspected illegal acts, (c) any other violations of company policies with financial statement impact, or (d) any unethical behavior by management or employees?
>
> > I'm unaware of any violations of law, regulations, breaches of contracts, illegal acts, unethical behavior, or any other violations <u>that may impact the City's financial statements for FY-2021.</u>

See Exhibit B, emphasis supplied. Notably, that is consistent with the violation of mentioned supra (i.e., Florida Stat. Sec. 166.241 (titled Fiscal years, budgets, appeal of municipal law enforcement agency budget, and budget amendments.),

which requires each county and municipal budget officer to submit certain information regarding their respective government's final budget and economic status to the Florida Legislature's Office of Economic and Demographic Research (EDR) by October 15th of each year); *see also* Fla. Stat. Sec. 129.03 (titled Preparation and adoption of budget).

C. *Exhibit C also forms the basis for a public whistleblower claim under Fla. Stat. § 112.3187.*

In June 2022, during a City Council meeting that Plaintiff was required to attend due to his position with Defendant as the Council required him to attend all City Council meetings, he was questioned by City Council members publicly about certain practices within Defendant City. *See* the Second Amended Complaint, paragraph 13. Plaintiff responded to these questions and discussed that finding anything "historical" regarding certain spending practices within the City would be "next to impossible because I couldn't pull out that miscellaneous revenue where things were going." [*See* Exhibit C]. *Id.* The statement, at 42:38, is:

> 42:38 - Stefen Wynn - So, I can answer kind of part of that, so where the money was going before was going into a miscellaneous revenue fund that wasn't broken down until this year, and so those were new accounts that I created within that miscellaneous revenue to give specific descriptions to like, building permits go to the building department, you know community development department, code enforcement violations go to code enforcement, you know, budget. Prior to that, they were going back into the miscellaneous revenue line for the general fund. <u>You know, so, that's a change that's historic that I would say would fall upon my office to make those changes that would operate government a little more transparently.</u>

> So, knowing that, trying to find anything historical, I'm going to tell you is next to impossible because I couldn't pull out that miscellaneous revenue where things were going, so.

(emphasis supplied). Thus, this is an additional activity protected by the FPWA.

D. *Exhibit D also forms the basis for a public whistleblower claim under Fla. Stat. § 112.3187.*

On October 20, 2022, Plaintiff hand-delivered written copies of the same information he reported to Purvis Gray on March 15, 2022, to the City Council and the Chief Financial Officer. *See* the Second Amended Complaint, paragraph 36. In these written and signed disclosures, Plaintiff reported that money coming into the building and permit department did not match the general ledger, meaning that money paid into the City was not deposited into City accounts. [*See* Exhibit D]. *Id.* Specifically, the letter's last two paragraphs state:

> While performing my due diligence, subsequent to my letter to the Auditors in March, I put together a 4-year (unaudited) Financial Report of annual costs to provide public services from the City, including the police department. In all four years, the police department operated using over 100% of all ad-valorem revenue collected from property taxes. Again, I reported my findings to Finance Committee Members and have since asked for an investigation into historic spending and financial management practices performed by the City.
>
> The City's new CFO approached me about concerns regarding spending and the possibility of fraud within her first month with the City due to the lack of internal controls prior to my implementation. In addition to the City Council meeting on September 19, 2022, it prompted a deeper examination into the City's historic financial management practices. The Mayor, CFO, and myself meet on a more

> regular basis to discuss the audit outcomes, the additional internal controls, and the implementation of desperately needed, critical financial software.

(emphasis supplied). Accordingly, this is also a protected activity.

III. Plaintiff's Oral Complaints are Also Protected

The "Whistle-blower's Act" requires that Plaintiff disclose:

> (b) Any act or suspected act of gross mismanagement, malfeasance, misfeasance, gross waste of public funds, suspected or actual Medicaid fraud or abuse, or gross neglect of duty committed by an employee or agent of an agency or independent contractor.

§ 112.3187(5), Fla. Stat.; *Rosa v. Dept. of Children and Families*, 915 So.2d 210 (Fla. 1st DCA 2005). Protection is also given if a public employee discloses "any other abuse." §112.3187(2), Florida Statutes. The "nature of information disclosed" is a question of fact. *Rice-Lamar v. City of Fort Lauderdale*, 853 So.2d 1125, 1133 (Fla. 4th DCA 2003) (reversing order of summary judgment on basis of, among other things, whether plaintiff disclosed any item required under §112.3187(5)). As for how verbal reports are protected under the Florida whistleblower act, *see Shuck v. Clark*, 2007 WL 676198 (M.D. Fla. 2007)(court recognized that verbally disclosing actual or suspected violations of laws or rules during an investigation is whistle-blowing activity when the plaintiff was interviewed by City's Employee Relations Department.); *Jones v. School Bd. of Orange County, Fla.*, 2005 WL 1705504 (M.D. Fla. 2005) (trouble-shooting meeting with management could be inquiry.); *Crouch v. Public Service Com'n*, 913 So.2d 111, 111-12 (Fla. 1st DCA 2005) (no writing is

required if disclosures made during participation in an investigation.); *Martin County v. Edenfield*, (Edenfield divulged malfeasance by the County while being questioned by a county commissioner. The court accepted this participation as protected whistle-blowing activity.); *Rustowicz v. N. Broward Hosp. Dist.*, 174 So. 3d 414, 422 (Fla. 4th DCA 2015) ("[I]f an employee is requested to participate in an investigation, hearing, or other inquiry concerning governmental wrongdoing by an appropriate official or official entity, as discussed more fully below, and makes disclosures of wrongdoing as defined by the Whistleblower Act during or as a result of participation, the employee qualifies for protection under the Act, and the disclosures need not be by a signed complaint or on the initiative of the employee."); *Perez v. City of Opa-Locka*, 22-20748-CIV, 2023 WL 6121896, at *14 (S.D. Fla. Sept. 19, 2023) (plaintiff's disclosures of excessive storage fees made after the police chief asked plaintiff to investigate whether contraband was seized legally were disclosures made in furtherance of an investigation.); *Batz v. City of Sebring*, 17-14107-CIV, 2019 WL 11637131, at *17 (S.D. Fla. Mar. 21, 2019), aff'd, 794 Fed. Appx. 889 (11th Cir. 2019) (court determined that there was a triable issue of fact as to whether oral comments to owners that City officials were undermining the plaintiff's efforts to bring Lodge within fire safety codes were protected activity.); *Temple v. City of Crestview*, 3:19CV2989-MCR-HTC, 2021 WL 1209851, at *7 (N.D. Fla. Mar. 31, 2021) (a jury question existed whether the

plaintiff's statements made to the City's mayor during a meeting were disclosures made in furtherance of an inquiry.)

Here, Plaintiff pled these verbal objections in the Second Amended Complaint. Specifically, paragraphs 11, 13, 14, 23, 24, and 28:

> 11. Later in March, 2022, Plaintiff was contacted by Lauren Key, who was on Defendant's Finance Committee, and specifically asked about the disclosures he made to Purvis Gray. He told her at that time that there was misspending in the Building Permit and Plan Review processes as money was not being properly accounted for. This was an inquiry by Key during which Plaintiff responded to questions by Key and disclosed the suspected fraud discussed in paragraph 10 above. These verbal complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.
>
> 13. In June, 2022, during a City Council meeting that Plaintiff was required to attend due to his position with the Defendant as he was required by the Council to attend all City Council meetings, he was questioned by City Council members publicly about certain practices within the Defendant City. Plaintiff responded to these questions and discussed the fact that finding anything "historical" regarding certain spending practices within the City would be "next to impossible because I couldn't pull out that miscellaneous revenue where things were going." [See Exhibit C]. These verbal complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.
>
> 14. Plaintiff later reported mismanagement of funds which was related to the Defendant's police department's spending over 100 percent of Defendant's ad valorem budget, both verbally and in writing in August, 2022. [See Exhibit F]. The disclosures referenced in this paragraph occurred during negotiations between the union for the Defendant's police department and Plaintiff, who was designated by the City Council as the Chief Negotiator for the Defendant City. Plaintiff was required by the Defendant City Council to attend these negotiations during which Plaintiff reported the serious overspending by the police department to Defendant's Chief of Police, Defendant's Chief Financial Officer, and the City

Clerk, all of whom were either chief executive officers or other appropriate local officers, and all of whom were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff. The reporting of the misspending by Plaintiff was verbal during these negotiations but was supported by Exhibit F, showing deficits in the Police spending and that it was over budget. These verbal complaints by Plaintiff, coupled with Exhibit F which was prepared by Plaintiff to show misspending by Defendant's police department, constitute a whistle blower disclosure by Plaintiff.

23. There was thereafter a City Council meeting on August 15, 2022, during which Plaintiff was harassed and verbally berated by Councilor Key on matters unrelated to the police department.

24. Following the City Council meeting on August 15, 2022, Plaintiff made reports of a potential conflict of interest related to Councilor Key about her husband, police department Commander Michael Key. These reports were made verbally to Lauren Key during an inquiry initiated by Key who stormed into Plaintiff's office irate about matters involving the police department that were discussed with the Police Chief earlier that day. During that meeting, initiated by Lauren Key, Plaintiff told her that she was towing a very fine ethical line pertaining to budget items and the fact that her husband was making purchases for the police department that were not following the City's procurement policies. Key became more irate and told Plaintiff that if he thought there was an ethical violation, he should just "go ahead and report it." Councilor Key yelled at Plaintiff during this meeting and told Plaintiff to never make any allegations against her and her husband again. These verbal complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.

28. In the weeks following, Plaintiff was forced to meet with Defendant's City Attorney, Zachary Roth, and various City Council members by being summoned to multiple meetings. During these meetings, between Plaintiff, one or more City Council members, the Mayor and/or the Defendant's City Attorney, none of which were initiated by Plaintiff, Plaintiff continued to report the wrongdoing by the Keys, the ethical conflict and improper spending

> by the City's police department. These verbal complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.

Thus, especially given Plaintiff's written complaints (i.e., Exhibits A, B, C and D) and that all inferences must be drawn in his favor, his Second Amended Complaint alleges protected conduct. *See generally City of Miami v. Cruz*, 2022 WL 2231891, *1 (Fla. 3d DCA June 22, 2022) (all allegations must be accepted as true, and all reasonable inferences must be drawn in favor of Plaintiff).

IV. Plaintiff's Complaints Were to the Correct Persons

Defendant also argues that, despite the allegations in Plaintiff's Second Amended Complaint otherwise, he and "City Council was the proper authority to receive reports from Plaintiff relating to §112.3187." At the same time, though, Defendant also acknowledges that the objections described in Plaintiff's Exhibit B were only made to a "single councilperson" [i.e., Lauren Key] instead of the "entire council." *See* paragraph 14 of the Defendant's instant Motion. But, on its face, that argument makes no sense because it would mean that the FPWA only protects complaints if a plaintiff can prove that every council person received copies of each written objection (what if someone is on vacation?). That is not a liberal interpretation of the FPWA – and it is not the law either. *See also Igwe v. City of Miami*, 208 So.3d 150 (Fla. 3d DCA 2016) ("The phrase, 'other appropriate local official,' has been interpreted to mean 'an official or official entity who is affiliated with the violating governmental entity and has the authority to

investigate, police, manage, or otherwise remedy the violation or act by the violating governmental entity.'")(citation omitted).

Moreover, just like in *Russ*, reading all the Exhibits together shows they were. *See Russ* at *6-7 ("Moreover, although Russ may not have identified the specific individuals alleged to be at fault, Russ testified that the bursar is responsible for at least some of the items described in the reports. Additionally, Russ testified that she orally identified the bookkeeper and bursar as the responsible parties for the improperly handled student accounts.", record citations omitted). Thus, just because Russ's written reports might have been insufficient – standing along – the information he provided orally should also be considered in determining that his written report was protected.

Finally, the notion that the mayor is some figurehead with no power is entirely ridiculous. Section 2.04 of the Defendant's Charter (titled Mayor) states that "The mayor shall preside at meetings of the council and shall be recognized as head of the city government for acceptance of service of process, ceremonial matters and by the Governor for purposes of military law, <u>and execution of contracts, deeds, and other documents</u>. The mayor shall have no administrative duties other than those necessary to accomplish these duties, unless provided by ordinance." Section 2.07 (City Council meetings) states, "The council shall meet regularly at least once a month at such times and places as the council may

prescribe by rule. Special meetings may be held at the call of the mayor, or, in his absence, at the call of the vice-mayor, or at the request of a majority of the councilors; and, whenever practicable, shall provide for not less than 12-hours' notice to each member and the public…." So, a complaint to the Mayor is proper because they (if not absent) are the only ones who can call a special city council meeting; the Mayor had the authority to correct the issues by calling for a council meeting. *See Igwe v. City of Miami*, 208 So.3d 150 (Fla. 3d DCA 2016) (other appropriate local means an official or official entity who is affiliated with the violating governmental entity and has the authority to investigate, police, manage, or otherwise remedy the violation or act by the violating governmental entity).

RESPONSE TO DEFENDANT'S MOTION TO STRIKE

Defendant's separately filed Motion to Strike is largely a regurgitation of the arguments it made in its Motion to Dismiss, so it should be denied for the same reasons set forth above. The gravamen of Defendant's Motion to Strike is set forth in its third paragraph, arguing that an individual city commissioner does not have the authority to address Plaintiff's complaints. As explained above, however, Plaintiff's complaints were to a collective of persons who could remedy them. So, isolating one and "striking" it would eliminate the ability for Plaintiff to explain the nature of his many objections. That might be a very clever defensive maneuver, but is not permitted by the law as demonstrated in *Russ* – because in that case if

the plaintiff's oral identification of the bookkeeper and bursar as the responsible parties for the improperly handled student accounts was struck then the court never could have found the written reports sufficed. *See* Russ at *6-7, discussed above. In other words, Plaintiff's objections are analyzed collectively, and chipping away at them is misleading.

The Motion to Strike is also inconsistent with Defendant's Motion to Dismiss because it demands the Court to strike the very exhibits that Defendant's previous Motion to Dismiss demanded Plaintiff attach. *See* the Court's Order on that Motion to Dismiss dated February 7, 2024, paragraph 3, requiring Plaintiff to outline the claims with specificity. Nothing could be more specific than actually attaching the exhibits upon which Plaintiff's case relies, i.e. the written objections forming the basis of his action. Defendant cannot have it both ways --- Plaintiff's complaint cannot lack enough detail, thus requiring a motion to dismiss, and also have too much detail, thus requiring a motion to strike.

The Motion to Strike is also improper, encouraging the Court to review matters outside the complaint such as in footnote 3. There, it asks the court to watch "The City's minutes" it claims "are available on the world wide web at https://www.nbfl.gov/node/30/minutes/2023." *See also* footnotes 1 and 2 of Defendant's Motion to Strike, asking the Court to examine various provisions of the municode. But such argument ignores that on a motion to dismiss, "the trial

court must confine its review to the four corners of the complaint, draw all inferences in favor of the pleader, and accept as true all well-pleaded allegations." *Sobi v. Fairfield Resorts, Inc.*, 846 So.2d 1204, 1206–07 (Fla. 5th DCA 2003), citing *City of Gainesville v. State, Dept. of Transp.*, 778 So.2d 519 (Fla. 1st DCA 2001); *Cintron v. Osmose Wood Preserving, Inc.*, 681 So.2d 859, 860–61 (Fla. 5th DCA 1996). "It is not for the court to speculate whether the allegations are true or whether the pleader has the ability to prove them." *Id.*, *citing City of Gainesville*. Thus, '[t]he question for the trial court to decide is simply whether, assuming all the allegations in the complaint to be true, the plaintiff would be entitled to the relief requested.' *Id., citing Cintron*, 681 So.2d at 860–61.

Even if it were a proper motion to strike, the striking of pleadings is not favored and is "a drastic action" to be used sparingly by the courts, with any doubts to be resolved in favor of the pleadings. *Costa Bella Dev. Corp. v. Costa Dev. Corp.*, 445 So. 2d 1090, 1090 (Fla. 3d DCA 1984) (affirming order denying motion to strike affirmative defenses "since the striking of pleadings is not favored and all doubts are to be resolved in favor of the pleadings"); *Sanchez v. LaSalle Bank Nat. Ass'n*, 44 So. 3d 227, 228 (Fla. 3d DCA 2010) (holding court improperly struck defenses sua sponte). A court should not strike a pleading on the ground that the party subsequently may not be able to prove her allegations. *Id.* Indeed, motions to strike are so rarely granted that they have judicially been deemed "time

wasters." *Beaulieu v. Bd. Of Trustees of Univ. of West Fla.*, 2007 WL 2900332 *5 and n.7 (N.D. Fla. Oct. 2, 2007) (quoting Somerset Pharms., Inc. v. Kimball, 168 F.R.D. 69, 71 (M.D. Fla. 1996)); *accord Carslon Corporation/Southeast v. School Bd. of Semiole County*, Fla., 778 F. Supp. 518, 519 (M.D. Fla. 1991) (characterizing motions to strike as "time wasters" and observing that such motions "will usually be denied").

Finally, a "motion to strike matter as redundant, immaterial or scandalous should only be granted if the material is wholly irrelevant, can have no bearing on the equities and no influence on the decision." *Pentecostal Holiness Church, Inc. v. Mauney*, 270 So.2d 762, 769 (Fla. 4th DCA 1972). Here, the allegations are all relevant, at least having a "a bearing on the equities." *See McWhirter, Reeves, McGothlin, Davidson, Rief & Bakas, P.A. v. Weiss*, 704 So. 2d 214, 216 (Fla. 2d DCA 1998) ("Here, the allegations in paragraph 7 were relevant and definitely had a bearing on the equities. Therefore, paragraph 7 should not have been stricken.") Therefore, its Motion to Strike should be denied like its Motion to Dismiss.

CONCLUSION

Whether considered individually or collectively, the written objections attached to Plaintiff's Second Amended Complaint constitute protected activity under the FPWA. Thus, especially when all reasonable inferences are drawn in Plaintiff's favor, as they must at this stage, Defendant's instant Motion must be

denied. *Abruzzo v. Haller*, 603 So.2d 1338 (Fla. 1st DCA 1992) (When reviewing an order granting a motion to dismiss for failure to state a cause of action, "it must be assumed that all allegations in the complaint are true and all reasonable inferences must be drawn in favor of the pleader.") For these same reasons, Defendant's separately filed Motion to Strike also must be denied because adding even more allegations to the Second Amended Complaint would make it not a short and plain statement. *See* Fla.R.Civ.P. 1.110(b)(2) (A claim for relief need only contain "a short and plain statement of the ultimate facts showing that the pleader is entitled to relief.")[4]

[4] In an abundance of caution, should the Court agree at all with Defendant, Plaintiff respectfully requests leave to amend because in most circumstances, the trial court's dismissal of a complaint for failure to state a cause of action should be without prejudice to the plaintiff's amendment of the complaint to cure the deficiencies. *See Mortgage Elec. Registration Sys., Inc. v. Azize*, 965 So. 2d 151, 153 (Fla. 2d DCA 2007). Also, a court should not dismiss a complaint without leave to amend unless the privilege of amendment has been abused or it is clear that the complaint cannot be amended to state a cause of action. *Trotter v. Ford Motor Credit Corp.*, 868 So. 2d 593, 595 (Fla. 2d DCA 2004). *See also Rohatynsky v. Kalogiannis*, 763 So. 2d 1270, 1272 (Fla. 4th DCA 2000) (leave to amend should not be denied unless the privilege has been abused, there is prejudice to the opposing party, or an amendment would be futile).

Respectfully submitted,

/s/ Marie Mattox
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the preceding has been served this 18th day of June, 2024, via electronic filing to all parties of record.

/s/ Marie A. Mattox
Marie A. Mattox